

Food safety recognition agreements (arrangements) can be mutual, meaning both countries recognise each other's food safety regulatory systems as comparable (equivalent) to their own, or they can be unilateral, meaning only one country out of the two will recognise the other country's food safety systems. Australia is able to recognise another country's food safety system as comparable (equivalent) to our own. This may involve reviewing that country's domestic food safety regulatory system to determine whether it provides similar protection to consumers to that of Australia. The 'other country' may also decide to recognise Australia's strong food safety system.

Food safety recognition arrangements have several benefits, including:

- assurance of an adequate level of protection for the consumer;
- better use of pooled resources to ensure food safety;
- facilitation of trade and elimination of delays at point of entry;
- reduced dependence on routine checking at point of import and hence savings in the monitoring resources of the importing country;
- the establishment of a consultative mechanism between the two parties for rapid resolution of problems in conformity assessment and related issues.

If a food safety recognition agreement is mutual, i.e. covers both food imports into Australia from a particular country and food exports from Australia to that country, then it is expected that shipments of Australian food covered by the agreement will be subject to a reduced import inspection and analysis when they arrive in that country.

Where relevant, sanitary and phytosanitary requirements of importing countries including certification requirements remain in place.

## **For Australian Exporters**

The agreement (sometimes called 'arrangement') sets out the food which is covered and not covered under the agreement. It may cover prescribed and non-prescribed goods.

If you are exporting goods prescribed under the [Export Control Act 2020](#), your products and processing establishments will have to meet all the requirements of the export control legislation, relevant to your product.

If you are exporting products which are not regulated under export control legislation (referred to as non-prescribed goods), to markets which recognise Australia's food safety system under a food safety recognition arrangement, your products and processing establishments must adhere to the Australia New Zealand Food Standards Code and the relevant State / Territory food acts.

More information about [exporting from Australia](#).

# Purpose of a food safety recognition agreement

The purpose, for exporters, is a more streamlined process when Australian businesses are exporting product overseas. It may involve less stringent testing and inspection of products and a reduced number of in-country audits or inspections. It also means greater facilitation of trade and can reduce the occurrence of lengthy delays at the border.

## Current food safety recognition agreements/arrangements

### Australia -US Food Safety Recognition Arrangement

The department signed an agreement with the US Food and Drug Administration (US FDA) in April 2017, recognising Australia's food safety system and the US food safety system are comparable/ equivalent to each other.

Foods covered by this agreement include:

- Canned foods
- Dairy products (excluding U.S. Grade A milk and milk products)
- Fresh fruit and vegetables
- Most Seafood
- Fruit juices
- Confectionery
- Baked goods; and
- Game meat.

Food not covered by this agreement include meat (except game meat), poultry, processed egg products, raw bivalve molluscan shellfish, raw milk cheese and dietary supplements and natural health products.

Exporters of the goods which are covered by the agreement may now find it easier to gain access to the US market. This is good for Australian businesses, as it positions Australia as a safe source of food supply and puts our exporters in a position of benefit compared to other exporting countries which do not have a similar agreement in place.

The agreement does not override some of the requirements set by the US food safety legislation under the Food Safety Modernization Act (FSMA), such as the requirement for food labelling to adhere to US standards.

Businesses exporting to the US will need to work with their importers in the US to show they remain in good compliance standing with Australian authorities. Food for export should not be subject to a [consumer level recalls](#) coordinated by Food Standards Australia New Zealand (FSANZ).

For export commodities controlled by the department, the department has an agreement with the US FDA to inform them of any non-complying businesses.

For more information on how this agreement affects food imported to Australia from the US, see [Imported Food Inspection Scheme](#).

Source: <https://www.agriculture.gov.au/biosecurity-trade/export/from-australia/food-safety-recognition-agreements>